

Court No. - 21

Case :- WRIT - C No. - 68002 of 2012

Petitioner :- Chhotey Lal

Respondent :- State Of U.P.And Others

Petitioner Counsel :- Parmeshwar Yadav,Mahboob Ahmad

Respondent Counsel :- C.S.C.

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Zaki Ullah Khan,J.

On prayer made by Sri Mahboob Ahmad, learned counsel for the respondent nos. 2 to 4, the case is directed to be put up as fresh on 6th February, 2013, so as to enable him to obtain instructions in the matter.

Order Date :- 17.1.2013

v.k.updh.

Court No. - 3

Case :- WRIT - C No. - 68002 of 2012

Petitioner :- Chhotey Lal

Respondent :- State Of U.P.And Others

Petitioner Counsel :- Parmeshwar Yadav,Mahboob Ahmad

Respondent Counsel :- C.S.C.

Hon'ble Laxmi Kanta Mohapatra,J.

Hon'ble Mrs. Sunita Agarwal,J.

Heard Sri Rajiv Kumar Yadav, holding brief of Sri Parameshwar Yadav, learned counsel appearing for the petitioner and Sri Mahboob Ahmad, learned counsel appearing for respondents no.2,3 & 4.

The petitioner in this writ application challenge the electricity bills and the disconnection notice in annexure-1 to the writ petition and at the same time also prays for permitting him to deposit the bill in monthly instalments.

On perusal of the writ petition, we find that against the two bills under annexure-1, a complaint has been made by the petitioner for correction before the Chief Engineer. Under para 6.5 of the U.P.Electricity Supply Code, 2005 a complaint is required to be lodged before the Executive Engineer.

We therefore, **dispose of** the writ application directing the petitioner to submit a complaint before the Executive Engineer respondent no.3 under the said provision. Pending disposal of the complaint if the petitioner deposits the entire due, supply of electricity shall be restored. If the petitioner is permitted to deposit the total amount in instalments by the Executive Engineer, on payment of 1st instalment, the electric supply shall be restored.

Order Date :- 7.2.2013

PKB